

25STCV12582 25STCV12582

County: los-angeles

Division: Civil Law and Motion

Department: 512

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Case Number: 25STCV12582 Hearing Date: September 11, 2026 Dept: 512

HEARING DATE: Fri., September 11, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Jane

Doe v. Pizza Hut of America, LLC, COMP.

FILED: 04-30-25

et al. FAC FILED: 02-13-26

CASE NUMBER: 25STCV12582

NOTICE: OK

PROCEEDINGS: MOTION

FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION

MOVING PARTY: Defendant

Southern California Pizza Company, LLC

RESP. PARTY: Plaintiff

Jane Doe

MOTION FOR

SUMMARY JUDGMENT/ADJUDICATION

(CCP § 437c)

TENTATIVE RULING:

Defendant Southern

California Pizza Company, LLC's Motion for Summary Judgment is DENIED.

Defendant's Motion for

Summary Adjudication is GRANTED IN PART and DENIED IN PART.

The Motion for Summary

Adjudication is GRANTED as to the first, second, and fourth causes of action and otherwise DENIED as to Southern California Pizza Company, LLC.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on August 24, 2026 ☐
Late ☐ None

REPLY: Filed
on August 31, 2026 ☐ Late ☐
] None

ANALYSIS:

I.

Background

On April 30, 2025, Plaintiff Jane Doe
("Plaintiff") filed the instant action against Defendants Pizza Hut of America,
LLC; Southern California Pizza Company, LLC ("SCPC"); Edwin Ortiz; and

California Unique Security Services, LLC and Does 1-100.

On February 13, 2026, Plaintiff filed a First Amended Complaint ("FAC") against SCPC and Ortiz ("Defendants") and Does 1-100, alleging causes of action for Sexual Assault and Battery, Negligence, Negligent Hiring and Retention, and Tom Bane's Act Violation.

On February 20, 2026, SCPC filed an Answer.

On June 17, 2026, SCPC filed the instant Motion for Summary Judgment, or in the Alternative, Summary Adjudication (the "Motion") and request for judicial notice.

On August 24, 2026, Plaintiff filed an Opposition and Evidentiary Objections.

On August 31, 2026, SCPC filed a Reply and Evidentiary Objections.

II.

Procedural
Issues

As an initial matter, Court finds Plaintiff's Separate Statement confusingly and improperly provides qualified "Disputed" and/or "Undisputed" answers to SCPC's Separate Statement as well as alters the structure of the Separate Statement filed in support of the Motion. The Court navigates the Separate Statement filed in Opposition to the best of its ability but cautions Plaintiff to comply with the governing statute and Rules of Court in the future. (See *Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 876.)

III.

Evidentiary
Objections

In conjunction with the Opposition, Plaintiff filed Evidentiary Objections to various portions of the Valtierra Declaration filed in support of the Motion. The Court OVERRULES these

objections.

In conjunction with the Reply, SCPC filed Evidentiary Objections to ¶¶ 2, 6, 8, 9, 13, 14 of the Kingery Declaration as well as Exhibits 1, 2, 4, 5, 9, and 10 filed in support of the Opposition.

The Court SUSTAINS the first and second objections to ¶¶ 2 and 6 of the Kingery declaration and Exhibits 1-2 filed in support of the Opposition for hearsay and lack of foundation. The Court sustains the third and fifth objections to ¶¶ 8 and 13 of the Kingery declaration and Exhibits 4 and 5 filed in support of the Opposition as irrelevant.

The Court OVERRULES the fourth, sixth, and seventh objections to ¶¶ 9, 13-14 of the Kingery declaration and Exhibits 5 and 10 filed in support of the Opposition.

IV.

Request
for Judicial Notice

In support of the Motion, SCPC requests the Court take judicial notice of the FAC in this matter. (RJN, pp. 1-3, Exh. 1.)

The Court GRANTS this request pursuant to Evidence Code section 452, subdivision (d).

V.

Allegations
in the FAC

On October 19, 2023, at approximately 1:48 a.m. Plaintiff entered her apartment complex located at 333 S. Kingsley Drive, Los Angeles, California and entered her unit located on the third floor at the end of a hallway. Defendant ORTIZ was allegedly also on the premises to make a delivery on behalf of Defendant CALIFORNIA PIZZA and DOES 51 to 100 wearing a 'No One Out Pizzas The-Hut' shirt. Unbeknownst to Plaintiff, ORTIZ followed her to her apartment at 01:55 a.m. and listened closely putting his ear to her door as later revealed by Plaintiff's door camera.

Plaintiff only made a brief stop home to grab an item and at approximately 01:56 a.m. she ran out of her apartment to catch her cab outside. As she was heading towards the elevator Plaintiff was intercepted by ORTIZ in the hallway who grabbed her by the arm, pulled her towards himself, and used the other hand to slap her buttocks. Plaintiff used physical force to free herself from ORTIZ's grip. Plaintiff alleges that ORTIZ attempted to grab her buttocks again but was unable to do so because of Plaintiff's resistance. Plaintiff suffered scratches on her buttocks during the physical struggle. At the time of the assault, Defendant ORTIZ was acting within the course of his employment, and after assaulting Plaintiff he fled in a 1997 gold Toyota Camry with license plate 6GKW499. Upon information and belief, ORTIZ returned to his then-and-current employer Defendant CALIFORNIA PIZZA and DOES 51 to 100.

(FAC, ¶¶ 10-11.)

VI.

Legal

Standard

Summary judgment

is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c,

subd. (c).) The moving party

"bears the burden of persuasion that there is no triable issue of material fact." (Aguilar v. Atlantic Richfield

Co. (2001) 25 Cal.4th 826, 850 (Aguilar).) To secure summary judgment, a moving defendant may prove an affirmative defense, disprove at least one essential element of the Plaintiff's cause of action . . . or show that an element of the cause of action cannot be established."

(Sanchez v. Swinerton & Walberg Co. (1996) 47 Cal.App.4th

1461, 1465; Code Civ. Proc., §

437c, subd. (p)(2).)

"The defendant

may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as

through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing. But . . . the defendant must indeed present evidence.” (Aguilar, supra, 25 Cal.4th at p. 855.) “In other words, all that the defendant need do is to show that the plaintiff cannot establish at least one element of the cause of action—for example, that the plaintiff cannot prove element X.” (Id., at 853.) Summary judgment in California “may be reduced to, and justified by, a single proposition: If a party moving for summary judgment in any action . . . would prevail at trial without submission of any issue of material fact to a trier of fact for determination, then he should prevail on summary judgment. In such a case . . . the ‘court should grant’ the motion ‘and “avoid a . . . trial’ rendered ‘useless’ by nonsuit or directed verdict or similar device. (Id., at p. 855.)

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) On a motion for summary judgment, the moving party’s supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D’Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

Code of Civil Procedure Section 437c, subdivision (f) provides that a party may move for summary adjudication as to one or more causes of action or one or more claims for damages if it is contended that the cause or claim has no merit. Motions for summary adjudication are procedurally identical to motions for summary judgment. (Code Civ. Proc., § 437c, subd. (f)(2); see Serri v. Santa Clara University (2014) 226 Cal.App.4th 830, 859.)

VII.

Discussion

Cause of

Action No. 1 – Sexual Assault and Battery

“The essential elements of a cause of

action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm." (So v. Shin (2013) 212 Cal.App.4th 652, 668-669.)

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (Id., at p. 669.)

Civil Code

section 1708.5, subdivision (a), states that "[a] person commits a sexual battery who does any of the following: [¶] (1) Acts with the intent to cause a harmful or offensive contact with an intimate part of another, and a sexually offensive contact with that person directly or indirectly results. [¶] (2) Acts with the intent to cause a harmful or offensive contact with another by use of his or her intimate part, and a sexually offensive contact with that person directly or indirectly results. [¶] (3) Acts to cause an imminent apprehension of the conduct described in paragraph (1) or (2), and a sexually offensive contact with that person directly or indirectly results."

Subdivision (b)

of Civil Code section 1708.5 makes "[a] person who commits a sexual battery upon another [] liable to that person for damages, including, but not limited to, general damages, special damages, and punitive damages."

In the context

of respondeat superior liability, the "real question is whether, under California law, the employer's presumably deeper pocket should have to bear the loss of an employee's tort, and that question requires an analysis of the nexus between the employer's enterprise, the employee's scope of employment, and the nature of the underlying tort itself." (See Z.V. v. County of Riverside (2015) 238 Cal.App.4th 889, 901.)

“ ‘ “[T]he determination whether an employee has acted within the scope of employment presents a question of fact; it becomes a question of law, however, when ‘the facts are undisputed and no conflicting inferences are possible.’ “ ” (Lisa M. v. Henry Mayo Newhall Memorial Hospital (1995) 12 Cal.4th 291, 299.)

The Court has reviewed all briefings and evidence submitted by the parties.

Here, SCPC presents evidence that SCPC did not itself act with intent to cause harmful or offensive contact to Plaintiff or touch Plaintiff. (Motion, Sep. Statement, ¶ 3, Valtierra Decl., ¶ 11.)

The parties do not dispute that Ortiz was employed by SCPC as a pizza delivery driver when the alleged sexual assault and battery occurred. (See Opp., Sep. Statement, ¶ 3.) While the Court acknowledges the parties dispute whether Ortiz acted in the course of a SCPC shift when the alleged sexual assault and battery were committed, the Court finds that, even assuming there is a triable issue of material fact as to this aspect of liability, the SCPC’s enterprise of pizza delivery and the nature of the sexual assault and battery in this case does not demonstrate respondeat superior liability of SCPC. (See e.g., Z.V., supra, 238 Cal.App.4th at p. 901; Lisa M., supra, 12 Cal.4th at p. 299.)

To explain, the Court finds Lisa M., supra, 12 Cal.4th 291 illuminating. In Lisa M., the Supreme Court of California held:

Hospital employed a technician to conduct ultrasound examinations. The technician, after completing such an examination of plaintiff, took advantage of plaintiff’s trust and his own superior knowledge to commit on her a deliberate sexual battery. His reasons for doing so did not derive from any events or conditions of his employment, nor were his actions provoked by anything that occurred during the prescribed examination. Hospital, by employing the technician and providing the ultrasound room, may have set the stage for his misconduct, but the script was entirely of his own, independent invention. For this reason it would be unfair and inconsistent with the basic rationale of respondeat superior to impose

liability on Hospital irrespective of its own negligence.

(Id., at p. 306.)

Similar to the rationale in *Lisa M.*, there is no evidence here that the alleged sexual assault and battery are fairly attributed to any aspect of the pizza delivery industry or any events or conditions of Ortiz's employment, "but only to 'propinquity and lust.' " (*Lisa M.*, supra, 12 Cal.4th at p. 302.) More specifically, there is no evidence of a work-related dispute or emotional involvement with Plaintiff that motivated or triggered the sexual assault and battery. There is no evidence that the alleged sexual assault and battery that occurred between Ortiz and Plaintiff arose from the delivery of a SCPC pizza to Plaintiff either at the time of the alleged assault and battery or beforehand. There is no evidence that the sexual assault and battery arose from a dispute relating to an SCPC pizza delivery order or SCPC transaction involving Plaintiff and Ortiz, that would show the criminal acts were "engendered by or broadly incidental to" SCPC's employee's "work so as to render" SCPC vicariously liable. (Id., at pp. 305-306.)

Even if SCPC, by employing Ortiz and providing him a SCPC shirt that gained him access to Plaintiff's residential building, "may have set the stage for his misconduct," the "script was entirely of his own independent invention." (Id., at p. 306.) " 'That the employment brought tortfeasor and victim together in time and place is not enough.' " (*Maria D. v. Westec Residential Sec.* (2000) 85 Cal.App.4th 125, 146, citing *Lisa M.*, supra, 12 Cal.4th at p. 301.)

Moreover, the Court finds the instant case distinguishable from cases involving an employer being held vicariously liable for their employee's intentional tort (see e.g., *Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202) and more akin to cases involving an employer not being held vicariously liable for their employee's intentional tort (see e.g., *Lisa M.*, supra, 12 Cal.4th 291; *Juarez v. Boy Scouts of America, Inc.* (2000) 81 Cal.App.4th 377, overruled in part on other grounds; *John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438; *Jeffrey E. v. Central Baptist Church* (1988) 197 Cal.App.3d 718, 722; *Alma W. v. Oakland Unified School Dist.* (1981) 123 Cal. App.3d 133, 139-142; see also *Farmers Ins. Group v. County of Santa Clara* (1995) 11 Cal.4th 992). Further, Plaintiff fails to provide any case

law or other legal authority demonstrating the Court should find otherwise.

Thus, the Court finds “it would be unfair and inconsistent with the basic rationale of respondeat superior to impose liability on” SCPC as a matter of law for the first cause of action. (Lisa M., *supra*, 12 Cal.4th at p. 306.)

As such, the Motion is GRANTED as to the first cause of action as to SCPC.

Given this finding, the Court need not address the ratification and ostensible agency contentions raised in the moving, opposing, and reply briefs. Even if the Court did, the Court finds the evidence presented by the parties does not demonstrate there is a triable issue of material fact as to either of these theories of liability for SCPC pre-incident.

Cause of Action Nos. 2, 4 – Negligence;
Violation of Tom Bane’s Civil Rights Act

“The elements of a negligence cause of action are duty, breach, causation and damages.” (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.)

“Generally, whether a defendant was negligent constitutes a question of fact for the jury. [Citations.] However, where reasonable jurors could draw only one conclusion from the evidence presented, lack of negligence may be determined as a matter of law, and summary judgment granted.” (Federico v. Superior Court (Jenry G.) (1997) 59 Cal.App.4th 1207, 1214.)

“[I]n pursuing relief for those constitutional violations under section 52.1, plaintiffs need not allege that defendants acted with discriminatory animus or intent, so long as those acts were accompanied by the requisite threats, intimidation, or coercion.” (Venegas v. County of L. A. (2004) 32 Cal.4th 820, 843; Civ. Code, § 52.1, subds. (a)-(b); CACI 3025.)

The Court finds the discussion regarding respondeat superior *supra* applies to the second cause of

action as well since the negligence allegations as to SCPC rest on a vicarious liability theory. (See e.g., CACI VF-3700.)

Furthermore, the Court notes that Plaintiff's sole argument in the Opposition as to this cause of action is the following cursory statement: "[t]he negligence count survives with the vicarious theory and on SCPC's direct duty." (Opp., p. 15.)

Similarly, the Court finds the discussion regarding respondeat superior supra applies to the fourth cause of action as well since the section 52.1 allegations as to SCPC rest on a vicarious liability theory.

Furthermore, the Court notes that Plaintiff's sole argument in the Opposition as to this cause of action is the following cursory statement: "The Bane Act ... claims are derivative of the issues above and survive with them; whether any managing agent knew of, authorized, or ratified the conduct is a question of fact." (Opp., p. 15.)

Thus, the Motion is GRANTED as to the second and fourth causes of action as to SCPC.

Cause of Action No. 3 – Negligent Hiring and Retention

'An employer may be liable to a third person for the employer's negligence in hiring or retaining an employee who is incompetent or unfit. ... The rule of direct employer liability under the Restatement Second of Agency section 213 is: "A person conducting an activity through servants or other agents is subject to liability for harm resulting from his conduct if he is negligent or reckless [P] ... [P] (b) in the employment of improper persons or instrumentalities in work involving risk of harm to others" As explained in comment (d): "The principal may be negligent because he has reason to know that the ... agent, because of his qualities, is likely to harm others in view of the work or instrumentalities entrusted to him. If the dangerous quality of the agent causes harm, the principal may be liable under the rule that one initiating conduct having an undue tendency to cause harm is liable therefor. ... [P] ... An agent ... may be incompetent because of his reckless or vicious disposition, and if a principal, without exercising due care in selection, employs a vicious

person to do an act which necessarily brings him in contact with others while in the performance of a duty, he is subject to liability for harm caused by the vicious propensity. ... [P] One who employs another to act for him is not liable ... merely because the one employed is incompetent, vicious, or careless. If liability results it is because, under the circumstances, the employer has not taken the care which a prudent man would take in selecting the person for the business in hand. ... [P] Liability results ... not because of the relation of the parties but because the employer antecedently had reason to believe that an undue risk of harm would exist because of the employment.” (Rest.2d Agency, *supra*, § 213, com. d., italics added.)’

(Federico, *supra*, 59 Cal.App.4th at pp. 1213-1214, emphasis in original.)

“[A]n employer’s duty ... is breached only when the employer knows, or should know, facts which would warn a reasonable person that the employee presents an undue risk of harm to third persons in light of the particular work to be performed.” (Federico, *supra*, 59 Cal.App.4th at p. 1214, emphasis in original.)

“Generally, whether a defendant was negligent constitutes a question of fact for the jury. [Citations.] However, where reasonable jurors could draw only one conclusion from the evidence presented, lack of negligence may be determined as a matter of law, and summary judgment granted.” (Federico, *supra*, 59 Cal.App.4th at p. 1214.)

Here, SCPC provides evidence of a declaration from SCPC’s Risk Manager that SCPC conducted a pre-employment screening of Ortiz, which included a background check that returned a result of “no record” and/or “clear” regarding Ortiz from the California Motor Vehicle Grade Report and National Multi-State Sex Offender and Other Offender Registry. (Motion, Sep. Statement, p. 14, ¶¶ 16-19, Valtierra Decl., ¶¶ 12-15, Exh. C.) SCPC also attaches a copy of said background check. (Motion, Sep. Statement, p. 14, ¶¶ 16-19, Valtierra Decl., ¶¶ 12-15, Exh. C.) SCPC also submits evidence of SCPC’s Risk Manager’s declaration attesting that, from the date of Ortiz’s hire until the subject alleged incident, Ortiz’s personnel file did not have any

record of complaints regarding his conduct or any disciplinary action. (Motion, Sep. Statement, p. 15, ¶¶ 22-23, Valtierra Decl., ¶¶ 16-17.)

Further, SCPC

provides evidence that, in connection with Ortiz's consideration for promotion, SCPC obtained a further background check on Ortiz a couple months after the first background check was conducted, which also came back as "clear" and included a criminal records check. (Motion, Sep. Statement, p. 15, ¶ 26, Valtierra Decl., ¶¶ 42-44, Exh. D.) However, this evidence is post-incident evidence, not pre-incident, albeit that too, returned as "clear".

SCPC also

provides evidence that Ortiz completed SCPC's required Sexual Harassment and Abusive Conduct Prevention Training on November 16, 2023. (See Motion, Sep. Statement, p. 14, ¶ 25, Valtierra Decl., ¶ 40, Exh. F.) However, the Court notes this evidence is post-incident evidence, not pre-incident.

Finally, SCPC

provides evidence of Plaintiff's responses to interrogatories wherein Plaintiff "identified no admissible evidence bearing on SCPC's pre-Incident knowledge of any propensity." (Motion, Sep. Statement, pp. 15-16, ¶ 32, Bartholomew Decl., ¶¶ 8, 12, Exhs. J, N.) However, the Court notes that the responses referenced contain either objections or denials that Plaintiff lacks the requisite evidence.

In review of the moving papers and

evidence, the Court finds the evidence presented does not meet SCPC's burden. SCPC's evidence demonstrates that Ortiz did not complete a Sexual Harassment training course prior to the subject alleged sexual assault and battery.

As such, the Court finds there is a

triable issue of material fact as to the adequacy of SCPC's training and supervision of Ortiz. (Federico, *supra*, 59 Cal.App.4th at pp. 1213-1214, 1216.)

Thus, the Motion is DENIED as to the third cause of action as to SCPC.

Punitive Damages

Here, the sole remaining cause of

action against SCPC is for negligent hiring and retention, and the FAC does not seek punitive damages against SCPC for this cause of action. (See FAC, pp. 7-8.) As such, the Court finds the Motion's request regarding the punitive damages in the FAC to be MOOT.

Thus, the Motion is DENIED AS MOOT as to the punitive damages request.

VIII. Conclusion & Order

For the foregoing reasons,
Defendant Southern California Pizza Company, LLC's Motion for Summary Judgment is DENIED.

Defendant's Motion for
Summary Adjudication is GRANTED IN PART and DENIED IN PART.

The Motion for Summary
Adjudication is GRANTED as to the first, second, and fourth causes of action and otherwise DENIED as to Southern California Pizza Company, LLC.

Moving party is ordered to
give notice.